



Purchase Order #GKNL-50713

Bill To Address

**Global Knowledge
Netherlands**

Iepenhoeve 5
Nieuwegein, 3438
Attn: Accounts Payable
Email:
NL.AccountsPayable@skillsoft.com

Ship To Address

**Global Knowledge
Netherlands**

Iepenhoeve 5
Nieuwegein, 3438
GK NL
Attn: Deepankar Mallick

Supplier Details

SKILLS4-IT-GKNL

Karmijnstraat 62
Tilburg, 5044 RE

General Info

PO Date: 05/21/26
Payment terms: 45
Currency: EUR

Line #	Item Details	Quantity	Unit	Price (EUR)	Total (EUR)
1	261928 GKMS FREELANCER 16.06.26			1,610.00	1,610.00
	Commodity: External Instructor Expense- ILT (526255)				
2	EUR 360 COURSE AUTH/DEV EXPENSES INCLUDED			0.00	0.00
	Commodity: External Instructor Expense- ILT (526255)				

Total: 1,610.00 EUR

Total Order Value is exclusive of VAT – items are subject to VAT at the applicable rate for the country where goods/services are being supplied from.

STANDARD TERMS AND CONDITIONS OF PURCHASE

AGREEMENT AND ACCEPTANCE: Unless Skillsoft (US) LLC ("Company") or one of its Affiliates, and Vendor, as identified on Company's purchase order (the "PO"), have entered into a separate written agreement governing the purchase and sale of Deliverables and/or services ("Deliverables"), the terms set forth on the PO and as set forth in these Standard Terms and Conditions of Purchase (collectively, the "Agreement") will govern the purchase and sale of Deliverables as described in a PO. Vendor's acknowledgment of the PO, either by written acceptance, or commencement of work on the Deliverables or shipment of such Deliverables, whichever occurs first, shall be deemed Vendor's acceptance of the terms and conditions of this Agreement. Acceptance of the PO is limited to acceptance of the express terms contained on the face of the PO, the terms and conditions herein, and any other additional documents expressly referenced in the PO. In the event that Company and Vendor have entered into a separate written agreement governing the purchase and sale of Deliverables, the terms of this Agreement shall supplement any terms in such written agreement unless expressly provided otherwise, and any conflicting terms shall be governed by the written agreement between the parties.

AFFILIATES: The parties acknowledge and agree that Company's Affiliates may exercise the rights and pursue the remedies provided to Company under this Agreement. An "Affiliate" and/or "Affiliates" of Company shall mean any entity that is directly or indirectly controlled by or under common control with Company. Accordingly, in the Agreement, "Company" will be interpreted to mean "Company and/or its Affiliates" where necessary to give Company's Affiliates the benefit of all rights and remedies provided to Company in this Agreement.

PACKING AND DELIVERY: Deliverables shall be packed and delivered in accordance with industry standard practice and all applicable federal, state and local laws, regulations, and orders, in accordance with the PO. Vendor shall pay all damages resulting from improper packing or shipment of the Deliverables. Unless otherwise agreed to in writing signed by both parties, all Deliverables shall be delivered FOB destination. Company shall assume all risk of loss upon Company's acceptance of the Deliverables at Company's designated receiving dock, at which point title to the Deliverables shall pass to Company. Time is of the essence in connection with this Agreement. If Vendor fails to deliver all or any part of the Deliverables in accordance with Company's schedule, then Company may, in its sole discretion and in addition to any other rights or remedies it may have, cancel the PO with respect to Deliverables not yet delivered and accepted by Company, or purchase substitute Deliverables from any other seller/provider/vendor and Vendor shall be liable for the cost of cover. In the event of any such cancellation, Company's sole liability to Vendor shall be limited to payment for units delivered to and accepted by Company at the time of Vendor's receipt of the notice of cancellation. With respect to the portion of the PO not cancelled, if any, the unit price will not change and Vendor will otherwise continue performance under the PO pursuant to this Agreement.

ACCEPTANCE OF DELIVERABLES: Company will have seven (7) days (the "Acceptance Period") after receipt of the Deliverables in which to inspect and test the Deliverables for conformance with the descriptions and criteria set forth in a PO and any specifications made generally available by Vendor. If Company determines during the Acceptance Period that any of the Deliverables do not conform thereto, then Company will so inform Vendor and Vendor will have seven (7) days during which to correct any non-conformities in the applicable Deliverables and redeliver the same to Company. Upon redelivery to Company, a new Acceptance Period will commence and the parties will continue this process until such time as Company notifies Vendor that Company accepts all Deliverables. With respect to the initial delivery of Deliverables, in the event that Vendor fails to correct any Deliverables after such Deliverables have been rejected at least twice by Company, Company may, in Company's discretion, either (i) continue this process until such time as Company notifies Vendor that Company accepts all Deliverables; or (ii) return the Deliverables to Vendor and terminate this Agreement upon notice to Vendor and receive a full refund of any payments previously paid by Company to Vendor. Nothing contained herein shall relieve Vendor from its obligations of testing, inspection, and quality control, or from its warranty obligations hereunder.

PRICING AND PAYMENT; TAXES AND CHARGES: Company shall purchase the Deliverables at the prices set forth in the PO. All prices shall include all transportation, handling, packaging, labeling, boxing, crating, insurance, taxes, license fees, import, export and customs fees and duties, tariffs, agent or brokerage fees, document fees and other charges related to the Deliverables. Company will pay Vendor for the Deliverables delivered under the PO. Vendor shall submit an invoice to Company with each shipment of Deliverables, or performance of services, as applicable. Unless otherwise agreed to in writing signed by both parties, the payment terms for any undisputed invoice shall be 100% net sixty (60) days from receipt, in the currency specified in the PO. In the absence of any specified currency within the PO, payment shall be made in United States dollars.

WARRANTY: Vendor expressly warrants that all Deliverables or services furnished under the PO will be new, free from defects in material, workmanship, and design, will conform to all applicable specifications, standards, and samples, will be performed using personnel of required skill, experience, and qualifications and in a professional and workmanlike manner in accordance with generally recognized industry standards for similar services, will be fit for their intended purpose and operate as intended, will be merchantable, will be free and clear of all liens, security interests or other encumbrances, and will not infringe or misappropriate any third party's patent or other

intellectual property rights. Vendor warrants that all such Deliverables or services will conform to any statements made on the containers, labels, or advertisements for such Deliverables, and that any Deliverables will be adequately contained, packaged, marked, and labeled. The foregoing warranties shall extend to Company, its successors, assigns, customers, and users of such products sold by Company, and shall survive any delivery, inspection, acceptance or payment of or for the Deliverables by Company. Vendor agrees to promptly replace, correct defects of, or issue a pro-rata refund for any defective or non-conforming Deliverables or services, at Company's sole discretion and at no expense to Company, when Vendor is notified of such defect or non-conformity by Company. In the event of failure of Vendor to correct defects in or replace non-conforming Deliverables or services promptly in accordance with this Section, Company may make such corrections or replace such Deliverables and services, and Vendor shall be liable for the cost incurred by Company in doing so. Inspection, test, acceptance, or use of the Deliverables or services furnished hereunder shall not affect Vendor's warranty obligations hereunder, and such warranties shall survive inspection, test, acceptance, and use. Additionally, Vendor shall pass through to Company the benefit of any additional warranties secured from Vendor's suppliers, and shall provide all necessary assistance to Company in enforcing such warranties. The warranties set forth in this Section are cumulative and in addition to any other warranty available by law or equity.

CHANGES, CHANGE ORDERS: Company may at any time, by written instructions and/or drawings issued to Vendor (each a "Change Order"), order changes to the Deliverables. Vendor shall promptly submit to Company a firm cost proposal for the Change Order. If Company accepts such cost proposal, Vendor shall proceed with the delivery of changed Deliverables, or performance of changed services, subject to the cost proposal in accordance with this Agreement. Vendor acknowledges that a Change Order may or may not entitle Vendor to an adjustment in Vendor's compensation or the performance deadlines under this Agreement.

TERMINATION:

FOR CONVENIENCE: Company reserves the right to cancel any PO and/or this Agreement (in whole or in part) at any time, for its sole convenience. In the event of cancellation for convenience, Company will pay to Vendor the price of all finished Deliverables or service deliverables in Company's possession as of the date of Company's notice of cancellation for which payment has not already been paid to Vendor. In no event shall Vendor be compensated in any way for (1) any standard finished products that may be resold or reused by Vendor, (2) raw materials or work in process that may be incorporated into standard products manufactured by Vendor which may be resold by Vendor, (3) raw materials ordered or work performed after receipt of Company's notice of cancellation, (4) any reasonably avoidable costs of Vendor, or (5) Vendor's profits, administrative costs, or overhead. This provision states Company's sole liability in the event of cancellation for convenience. Vendor shall immediately stop all work on all affected Deliverables upon notice of cancellation and notify any suppliers to also stop work and incur no further direct cost. Any paid but unused fees associated with any PO cancelled pursuant to this provision shall be fully refunded to Company within fifteen (15) days of the effective date of termination.

FOR CAUSE: Company may terminate any PO and/or this Agreement (in whole or in part) in the event of any breach of any provision contained in the Agreement by Vendor at any time upon written notice to Vendor. In the event of cancellation for cause, Company shall not be liable to Vendor for any amount. Any paid but unused fees associated with any PO cancelled pursuant to this provision shall be fully refunded to Company within fifteen (15) days of the effective date of termination. Acceptance by Company of such refund shall not constitute a waiver of any other remedies contemplated in this Agreement or available to Company in accordance with applicable law.

INDEMNIFICATION: Vendor will, at its expense, defend, indemnify, and hold harmless Company and its customers and their respective officers, directors, shareholders, employees and agents from and against any and all liabilities, costs, losses and expenses (including reasonable attorney's fees) arising out of any action brought against Company or any of its customers based on a claim arising out of or in connection with: (a) Vendor's breach of any provision contained within any PO or this Agreement, (b) Vendor's performance under any PO to the extent caused by, in whole or in part, any grossly negligent act or omission, or willful misconduct of Vendor, or (c) any third-party claim that Vendor product(s) and/or service(s) infringe(s) a patent, copyright, trademark, or trade secret of a third party.

COMPLIANCE WITH LAWS: Vendor warrants that it shall at all times comply with all applicable international, federal, state, and local laws and regulations in connection with the Deliverables contemplated under any PO and/or this Agreement, as may be amended from time to time, including, but not limited to, U.S. export control and trade sanction laws, the International Emergency Economic Powers Act, Export Administration Regulations (EAR), regulations implemented by the US Department of Treasury Office of Foreign Assets Control (OFAC), the CAN-SPAM Act of 2003, the California Consumer Privacy Act (CCPA), the EU's General Data Protection Regulation (GDPR), Canada's Anti-Spam Law (CASL) as well as, its Personal Information Protection and Electronic Documents Act (PIPEDA).

LIMITATION ON COMPANY'S LIABILITY: IN NO EVENT SHALL COMPANY BE LIABLE FOR ANY SPECIAL, INCIDENTAL, OR CONSEQUENTIAL DAMAGES FOR BREACH OF OR FAILURE TO PERFORM UNDER THIS AGREEMENT, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. COMPANY'S

LIABILITY ON ANY CLAIM OF ANY KIND FOR ANY LOSS OR DAMAGE ARISING OUT OF, OR IN CONNECTION WITH THIS AGREEMENT OR FROM THE PERFORMANCE OR BREACH THEREOF SHALL IN NO CASE EXCEED THE PRICE ALLOCABLE TO THE DELIVERABLES OR SERVICES WHICH GIVES RISE TO THE CLAIM. COMPANY SHALL NOT BE LIABLE FOR PENALTIES OF ANY KIND.

INSURANCE: Vendor will maintain comprehensive general liability insurance covering bodily injury, property damage, contractual liability, products liability and completed operations, and worker's compensation and employer's liability insurance, in amounts necessary to insure against any and all risks to Vendor's operations in accordance with applicable industry best practices. Such policies shall include Company as an additional insured and loss payee thereof. Vendor shall furnish to Company a certificate of insurance or other satisfactory evidence of insurance upon request by Company.

CONFIDENTIAL INFORMATION: Any information furnished by Company to Vendor in connection with a PO shall be considered confidential (except that which is available to the public or otherwise generally known) ("Confidential Information"). Except with Company's prior written consent, Vendor will not divulge any such Confidential Information to any other person or third party, or otherwise use such information for any other purpose other than performing its obligations under a PO.

SECURITIES LAW COMPLIANCE: Vendor hereby acknowledges that it understands that: (a) Confidential Information may contain or constitute material non-public information concerning Company and its Affiliates; and (b) trading in Company's securities while in possession of material nonpublic information or communicating that information to any other person who trades in such securities could subject Vendor to liability under the U.S. federal and state securities laws, and the rules and regulations promulgated thereunder, including Section 10(b) of the Securities Exchange Act of 1934, as amended, and Rule 10b-5 promulgated thereunder. Vendor agrees that it and its Affiliates will not trade in Company's securities while in possession of material nonpublic information or at all until Vendor and such Affiliates can do so in compliance with all applicable laws and without breach of this Agreement.

GOVERNING LAW AND VENUE: This Agreement and all disputes hereunder, and the rights and obligations of the parties hereto, shall be governed by and construed in accordance with the laws of New Hampshire without reference to its conflicts or choice of law provisions. In any litigation, arbitration, or other proceeding arising out of or related to this Agreement, the prevailing party shall be entitled to receive its reasonable attorneys' fees, and reasonable costs and expenses.

FORCE MAJEURE: Neither party shall be liable to the other for any loss or damage resulting from any delay or failure in any respect, if such delay or failure is caused, in whole or in part, by events, occurrences, or causes beyond its control. Such events, occurrences, or causes include, without limitation, acts of God, strikes, lockouts, inability to secure materials and transportation facilities, riots, acts of war, terrorist acts, governmental actions, floods, earthquakes, and natural disasters, fires and explosions.

MISCELLANEOUS: Vendor is an independent contractor and nothing contained herein shall create or imply an agency relationship between Vendor and Company. Neither party shall have any authority to make commitments or enter into contracts on behalf of the other party. If for any reason a court of competent jurisdiction finds any provision of a PO or this Agreement, or any portion thereof to be unenforceable, that provision shall be enforced to the maximum extent permissible so as to effect the intent of the parties, and the remainder of the PO and this Agreement shall continue in full force and effect. No waiver of any breach of any provisions of this contract shall be effective unless made in writing and signed by Company and Vendor. No failure or delay by either party in exercising any right, power, or privilege hereunder will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder. No amendment to or modification of the PO or this Agreement shall be binding unless in writing and signed by a duly authorized representative of both parties. Provisions of this Agreement which by their nature should survive beyond termination of this Agreement shall remain in force after any termination or expiration of this Agreement.

ASSIGNMENT: Vendor shall not assign, transfer, delegate, or subcontract any of its rights or obligations under this Agreement without the prior written consent of Company. Any purported assignment or delegation in violation of this section shall be null and void. No assignment or delegation shall relieve the Vendor of any of its obligations hereunder. Company may at any time assign or transfer any or all of its rights or obligations under this Agreement without Vendor's prior written consent to any affiliate or to any person acquiring all or substantially all of Company's assets.

NON-DISCRIMINATION AND AFFIRMATIVE ACTION. Unless exempt, Vendor shall abide by the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a). These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, and prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity or national origin. Moreover, these regulations require that covered Vendors take affirmative action to employ and advance in

employment qualified individuals without regard to race, color, religion, sex, sexual orientation, gender identification, national origin, protected veteran status or disability. If applicable, Vendor shall also abide by the requirements 41 CFR § 61-300.10 regarding veterans' employment reports and 29 CFR Part 471, Appendix A to Subpart A regarding posting a notice of employee rights.

CODE OF CONDUCT, NON-DISPARAGEMENT, AND PUBLICITY: Vendor shall not and shall not allow others within Vendor's reasonable control to: (a) disparage or discredit Company; or (b) use, or have Company's name, trademark or logo used, in any advertising or promotional material without the prior written permission of Company. Further, Vendor warrants that it shall at all times comply with Company's Supplier Code of Conduct, available at: <http://www.skillsoft.com/conduct>.